

# SENATE . . . . . No. 2697

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## The Commonwealth of Massachusetts

—  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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SENATE, November 6, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill relative to assault and battery upon a transit worker (House, No. 4645) (also based on Senate, No. 2531); reports, recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text of Senate document numbered 2697.

For the committee,  
Michael J. Rodrigues

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1           Section 13D of chapter 265 of the General Laws, as appearing in the 2024 Official  
2 Edition, is hereby amended by striking out the first paragraph and inserting in place thereof the  
3 following paragraph:-

4           Whoever commits an assault and battery, including assault and battery by means of a  
5 bodily substance, upon any public employee, or any public transit worker, including but not  
6 limited to an employee or agent of an entity contracted to operate or provide public transit  
7 services, when such person is engaged in the performance of their duties at the time of such  
8 assault and battery, shall be punished by imprisonment for not less than 90 days nor more than  
9 2½ years in a house of correction or by a fine of not less than \$500 nor more than \$5,000, or  
10 both. For the purposes of this section, “bodily substance” shall mean any human secretion,  
11 discharge or emission including, but not limited to, blood, saliva, mucous, semen, urine or feces.